KIZITO MARTINS NDZAWANE
versus
THE STATE

HIGH COURT OF ZIMBABWE
MUZENDA J
MUTARE, 16 and 20 July 2026

BAIL APPLICATION

Mr *C Chibaya*, for the applicant
Mr *M Musarurwa*, for the Respondent

MUZENDA J:

1. The applicant is on remand pending trial. He is facing one count of attempted murder where the state alleges that on 5 November 2025 at the 160 km peg along Harare-Mutare Highway, with intent to cause death trapped complainant's motor vehicle between two trucks whilst complainant was inside his car. He also faces a second count of malicious damage to property, allegations being that on 5 November 2025 applicant set on fire complainant's Scania truck. The third count is that of robbery where the state alleges that on 5 November 2025 the applicant stoned complainant in order to take his Scania truck.
2. In his papers applicant denies all the three allegations stating evidence is scanty and the motor vehicles were not recovered up to this date complainant never identified any of the assailants. In any case applicant has cooperated with the state machinery from the first day of him becoming aware of the allegations as such he is not a flight risk. He offers to pay a recognizance of USD 500 coupled with other conditions.
3. In opposing the application, the central issues raised by the state are that all the offences were allegedly committed 8 months ago in November 2025 and to the state applicant was on the run. This to the state applicant is a flight risk. Secondly it was submitted by the respondent from November 2025 he was a fugitive to justice and if granted bail he is likely to interfere with police investigations.

4. The applicant was detained by CID officers in July 2026 and was taken to court for first appearance. I have heard the applicant's submission and read the detailed affidavit it appears it is not clear from applicant why he was taken as a suspect and his detailed explanation to all the 3 allegations. The state believes that it has a strong case against the applicant and it fears that if applicant is released on bail, he is a flight risk. Most of the concerns raised by the applicant in his papers relate to matters of trial to prove his innocence. However, he heavily relies o his pre-detention cooperation with the respondent's agents. To the contrary the state has directed this court to authorities that dilute such conduct and conclude that even in such situations an applicant can still be denied bail given the circumstances of each case. I am persuaded by the respondent's counsel on that aspect.
5. The applicant allegedly committed the three offences on 15 November 2025 during the night and from the state papers it appears complainant as observed above, it is not clear why applicant was dragged into this matter. Indeed, he bears no onus to prove his innocence but his application for bail, applicant should at least proffer an explanation of what could possibly led to his implication. The details of which would be a preserve of the trial court.
6. At this stage what is important is the interests of justice. The state's fears are that if granted bail pending trial applicant is likely to abscond. From November 2025 where was the applicant? This does not crisply emerge from his papers. Now the fears of the state cannot be easily disregarded. I am therefore satisfied that the state has established reasonable grounds to justify the detention of applicant pending trial.
7. Accordingly, the application for bail pending trial is dismissed.